

25VECV03017 25VECV03017

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-11

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Case Number: 25VECV03017 Hearing Date: August 11, 2026 Dept: T

25VECV03017 Sargsyan v Tatoyan

[TENTATIVE]

ORDER: Defendant Krikor Tatoyan, M.D. Motion to Strike Portions of the First Amended Complaint is GRANTED WITHOUT LEAVE TO AMEND. Defendant Krikor Tatoyan, M.D. is to file an Answer to the First Amended Complaint within 10 days.

Introduction

Defendant Krikor Tatoyan, M.D. (Defendant) moved to strike portions of Plaintiff Kristine Grigoryan's (Plaintiff) First Amended Complaint (FAC). Defendant placed into issue the prayer for non-economic damages in the first cause of action (COA) for negligence (survival action) to the extent that it seeks pre-death pain, suffering, and emotional distress damages and the allegation as to Decedent Anna Sarsyan's (Decedent) "great mental, physical, and nervous pain and suffering" alleged in FAC paragraph 28.

Discussion

Defendant asserted that the statute that permitted pre-death general damages expressly limited the remedy to actions filed before January 1, 2026. (Code Civ. Proc., sec. 377.34(b).) Defendant asserted that Plaintiff's request for pre-death general damages is no longer permitted because Plaintiff's survival action and wrongful death claim was alleged for the first time in the FAC, which was filed on May 14, 2026, because Decedent passed away on February 21, 2026. (FAC par. 34.) Plaintiff asserted that Defendant misinterprets the statute and argued that the pre-death general damages claim

is properly alleged because the statute does not reference a specific COA (i.e., survival COA). Plaintiff asserts that the statute should be read, based upon its plain language, and argues that pre-death general damages can be alleged based upon when the “action or proceeding” was filed. The instant action/proceeding was filed on May 30, 2025. However, the Court disagrees with Plaintiff’s interpretation of the statute because Plaintiff’s interpretation is limited to the words “action or proceeding”. The complete phrase in the statute’s subdivision (b) states: “in an action or proceeding by a decedent’s personal representative or successor in interest on the decedent’s cause of action (*italics added*)”. (Code Civ. Proc., sec. 377.34(b).) Plaintiff’s interpretation of the subdivision attempts to broaden the phrase of “action or proceeding” by ignoring the phrase that comes directly after it – “by a decedent’s personal representative or successor in interest”. The filing of the Complaint on May 30, 2025, was brought by then-living Anna Sargsyan, as an individual. The Complaint was not filed by Anna Sargsyan’s successor in interest, Kristine Grigoryan, as is pled in the FAC. Kristine Grigoryan in her capacity as Decedent’s successor in interest did not exist when the Complaint was filed because Decedent was still alive. Because the FAC was filed by Kristine Grigoryan, as Decedent’s successor in interest, after January 1, 2026, Decedent’s pre-death general damages are untimely filed per Code of Civil Procedure, section 377.34(b). The Court finds Defendant’s interpretation of the statute to be persuasive.

Plaintiff then argued that the survival claim relates back to the filing of the Complaint. However, the Court disagrees with Plaintiff. Preliminarily, Plaintiff failed to present any legal authority to support the contention that the relation back doctrine applies to the statute. Even if considered, the relation back doctrine does not apply to the facts of this case when read in conjunction with the statute. The statute expressly requires the survival action to be “filed” by Decedent’s successor in interest before January 1, 2026. Relating back the FAC to the original Complaint would not change the fact that Decedent filed the Complaint while she was alive and Plaintiff, as the successor in interest, did not exist when the Complaint was filed, specifically because Decedent was alive. This survival action is outside the bounds identified in the subdivision (b) of the statute.

The motion to strike is GRANTED WITHOUT LEAVE TO AMEND.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.